

		<u>Punitive Damages</u> Defendant TMS contends that the Complaint fails to allege facts supporting a claim of oppression, fraud, or malice, and Plaintiff does not allege that any officer, director, or managing agent of TMS committed, authorized, or ratified any such conduct. To plead a claim to recover punitive damages, a plaintiff must plead and show one of the following bases for imposition of exemplary damages, i.e. malice, oppression, or fraud. (Civ. Code, § 3294(a), (c).) To plead a claim to recover punitive damages against an employer based on the acts of an employee, a plaintiff must plead facts showing the employer “had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or [wrongful] act must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294(b).) At the pleading stage, the complaint may rely on ultimate facts of fraud, oppression or malice. (<i>Spinks v. Equity Residential Briarwood Apartments</i> (2009) 171 Cal.App.4th 1004, 1055.) Here, the Complaint alleges sufficient facts to support the punitive damages claim, including fraudulent concealment and actions on the part of an officer, director, or managing agent of Defendant TMS. (See FAC ¶¶ 61-73.) No later than 10 days after service of the notice of ruling, Defendant TMS shall file and serve an answer or other response to the Complaint. Plaintiff to give notice.
6	Gencal Newport Lido, LLC vs. Restor Physical Therapy, Inc.	OFF CALENDAR

7	Wells Fargo Bank, N.A. vs. Hellman	TENTATIVE RULING: <u>Motion to Vacate</u> Plaintiff Wells Fargo Bank, N.A., moves to vacate the dismissal and enter judgment against Defendant Cheyenne Hellman pursuant to the parties' stipulation. For the following reasons, the motion is DENIED without prejudice. Plaintiff served the motion on Defendant at 1010E Yorba Linda Blvd, Apt 1083, Placentia, CA 92870. According to the most recent document filed by Defendant, a Case Management Statement filed on June 23, 2022, Defendant is represented by Daniel S. March in Tustin. No substitution of attorney has been filed since. According to the Stipulation for Entry of Judgment executed by Defendant, "All notices, correspondence or communications of any type from Plaintiff to Defendant shall be directed to Defendant, unless Plaintiff is otherwise directed by Defendant, or someone acting on Defendant's behalf. Furthermore, notices maybe sent by fax or email." (Mulhorn Dec., Ex. 1 at ¶ 14.) But this motion is not a "notice, correspondence, or communication." The court notes that Plaintiff has previously filed a substantially similar motion in 2024, in which the court already addressed these service defects. Despite the court previously continuing the hearing on the prior motion to give Plaintiff an opportunity to cure the service defect, Plaintiff failed to do so, which led to the denial of Plaintiff's previous motion. Yet, two years later, Plaintiff files the same motion, containing the same service defects without explanation. To the extent that Plaintiff intends on filing any further motions to vacate under § 664.6, service must be made on both Defendant and Defendant's counsel. Plaintiff to give notice.
8	Amaro Lebron vs. Mazda Motor Corporation	OFF CALENDAR
9	Bolanos vs. General Motors, LLC	TENTATIVE RULING: For the reasons set forth below, Defendant General Motors, LLC's motion for summary judgment is DENIED, without prejudice.